IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(through web-based video conferencing platform)

CP(CAA)No.2/ALD/2023
(2nd Motion)
Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation between:

SULOG TRANSSHIPMENT SERVICES LIMITED
(CIN: U61200UP2011FLC089538)

……. **Applicant Transferor Company**

WITH

JINDAL ITF LIMITED
(CIN: U74900UP2007PLC069247)

……. **Applicant Transferee Company**

Order delivered on:03.02.2023

Coram: **HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)**
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present through video conferencing:

For the Applicant Companies: Mr. S K Gupta, PCS
For ROC : Mr. Krishna Dev Vyas, Adv.

Per: Mr. Praveen Gupta, Member (Judicial)

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **Sulog Transshipment Services Limited (**Applicant Transferor Company) and **Jindal ITF Limited** (Applicant Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).
2. The petitioner companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

-Sd- ***-Sd-***

3. The First Motion application seeking directions for Dispensing with the meetings of the Equity Shareholders, Preference Shareholders of Petitioner Company No.2, Secured Creditors of Petitioner Company No.1 and Unsecured Creditor of Company No.2 was filed before this Tribunal. It was further prayed to convene separate meetings of the Unsecured Creditors of Petitioner Company No.1 and Secured Creditors of Petitioner Company No.2 vide Company Application No. CA (CAA) No. 17/ALD of 2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 15.11.2022. In the order dated 15.11.2022, the meetings of the Equity Shareholders, Preference Shareholders of Petitioner Company No.2, Secured Creditors of Petitioner Company No.1 and Unsecured Creditor of Company No.2 were dispensed with for the reasons mentioned in the aforesaid order. Additionally, this Tribunal directed holding of meetings of Unsecured Creditors of Petitioner Company No.1 and Secured Creditors of Petitioner Company No.2 separately on 7 January, 2023 at 11:30 a.m. and 2:00 p.m. respectively at the Registered Office of the Petitioner Companies at A-1, UPSIDC Industrial Area, Nandgaon Road, Kosi Kalan, Mathrura-281403 (Uttar Pradesh). The separate meetings of Unsecured Creditors of Petitioner Company No.1 and Secured Creditors of Petitioner Company No.2 were duly convened wherein the scheme of amalgamation was considered and approved without any modification.
4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 15.11.2022.
5. Notices are accordingly issued in the present petition by the Petitioner Companies, within two weeks, to the following Authorities namely, (a) Central Government through Regional Director, New Delhi; (b) Registrar of Companies, Uttar Pradesh; (c) Jurisdictional Income Tax Authority; (d) Official Liquidator, Allahabad by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.
6. Mr. Krishna Dev Vyas present on behalf of ROC, accepts notice for the same. Let additionally notice be issued to the concerned ROC, as mentioned in para above.
7. In addition to the above public notice, the notice of hearing will be advertised in "Financial Express" in English language, and "Jansatta" in Hindi language, having

wide circulation in Mathura by not less than 10 days before the next date fixed for hearing.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of notice regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.
9. The next date of hearing of the petition shall be on 31st March, 2023 for the consideration of the approval of the scheme as contemplated between the petitioner companies.
10. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

February 03, 2023

Aditi Kharbanda
(LRA)